

THE CORPORATION OF THE TOWNSHIP OF MUSKOKA LAKES

BY-LAW NUMBER 2022-071

Being a By-law to Permit the Use of All-Terrain Vehicle, Multi-purpose Off-highway Utility Vehicle, Recreational Off-highway Vehicle on Municipal Roads within the Township of Muskoka Lakes.

WHEREAS Section 8 of the *Municipal Act*, S.O. 2001, c. 25, as amended (hereinafter referred to as the "Municipal Act") provides that the powers of a municipality under the Municipal Act or any other Act shall be interpreted broadly so as to confer broad authority on the municipality to enable the municipality to govern its affairs as it considers appropriate and to enhance the municipality's ability to respond to municipal issues;

AND WHEREAS Section 9 of the Municipal Act provides that a municipality has the capacity, rights, powers and privileges of a natural person for the purpose of exercising its authority under the Municipal Act or any other Act;

AND WHEREAS Section 28 of the Municipal Act provides that a municipality has jurisdiction over all highways over which it had jurisdiction on December 31, 2002;

AND WHEREAS Section 191.8 of the Highway Traffic Act, R.S.O. 1990, as amended, provides that a municipality may pass by-laws permitting the operation of All-Terrain Vehicle, Multi-purpose Off-highway Utility Vehicle, Recreational Off-highway Vehicle, on any highway or parts thereof within the jurisdiction of the municipality; and to prescribe a lower rate of speed for said vehicles while on Municipal highways and other matters specifically set out in the statute and regulation there under.

AND WHEREAS the Highway Traffic Act, R.S.O. 1990, and its subordinate regulations, as amended, provides the permitting requirements and use of All-Terrain Vehicles, Multi-purpose Off-highway Utility Vehicles, and Recreational Off-highway Vehicles.

AND WHEREAS Ontario Regulation 316/03, as amended defines what All-Terrain Vehicle, Multi-purpose Off-highway Utility Vehicle, Recreational Off-highway Vehicles are and the requirements by which they must comply.

NOW THEREFORE, the Council of The Corporation of the Township of Muskoka Lakes enacts as follows:

DEFINITIONS

1. In this by-law:

"All-Terrain Vehicle" (ATV) means an off-road vehicle that,

- (a) has four wheels, the tires of which are all in contact with the ground,
- (b) has steering handlebars,
- (c) has a seat that is designed to be straddled by the driver, and
- (d) is designed to carry,

(i) a driver only and no passengers, or

(ii) a driver and only one passenger, if the vehicle,

A. has one passenger seat that is designed to be straddled by the passenger while sitting facing forward behind the driver, and

B. is equipped with foot rests for the passenger that are separate from the foot rests for the driver;

"Multi-Purpose Off-Highway Utility Vehicle" (UTV) means an off-road vehicle that,

- (e) has four or more wheels, the tires of which are all in contact with the ground,
- (f) has a steering wheel for steering control,
- (g) has seats that are not designed to be straddled, and
- (h) has a minimum cargo capacity of 159 kilograms;

"Recreational Off-Highway Vehicle" (ORV) means an off-road vehicle that,

- (i) has four or more wheels, the tires of which are all in contact with the ground,
- (j) has a steering wheel for steering control,
- (k) has seats that are not designed to be straddled, and
- (l) has an engine displacement equal to or less than 1,000 cubic centimetres;

"Highway" includes a common and public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct or trestle, any part of which is intended for or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof within the jurisdiction of the municipality.

REGULATIONS

2. Any All-Terrain Vehicle, Multi-purpose Off-highway Utility Vehicle, Recreational Off-highway Vehicle shall not be operated on any Municipal Highway unless it meets the operation requirements of All-Terrain Vehicles, Multi-purpose Off-highway Utility Vehicles, Recreational Off-highway Vehicles as outlined in the Highway Traffic Act, and its subordinate Regulations, as necessary. These requirements include, but are not limited to: safety equipment, permitting, age of operator, and lighting.
3. All-Terrain Vehicles, Multi-purpose Off-highway Utility Vehicles, Recreational Off-highway Vehicles shall be permitted year-round, on all Municipal Highways under the jurisdiction of The Corporation of the Township of Muskoka Lakes.
4. All-Terrain Vehicles, Multi-purpose Off-highway Utility Vehicles, Recreational Off-highway Vehicles shall not be permitted to operate on Municipal Highways if the exhaust system has been altered over the manufacturer's recommended decibel level.
5. All-Terrain Vehicles, Multi-purpose Off-highway Utility Vehicles, Recreational Off-highway Vehicles shall not be driven at a rate of speed greater than:
 - 5.1. 20 kilometers per hour, if the speed limit established under the Highway Traffic Act or by the municipal by-law for that part of the highway is not greater than 50 kilometers per hour; or
 - 5.2. 50 kilometers per hour if the speed limit established under the Highway Traffic Act or by municipal by-law for that part of the highway is greater than 50 kilometers per hour.
6. Travel must be in the same direction as traffic and travel must be on the shoulder of the roadway. Travel on the roadway is permitted in accordance with section 24 of O. Reg. 316/03, as amended
7. Permission to operate All-Terrain Vehicles, Multi-purpose Off-highway Utility Vehicles, Recreational Off-highway Vehicles on Municipal Highways does not allow operation of these vehicles on sidewalks, township parks, playgrounds, utility areas, walking trails or unopened road allowances.

ENFORCEMENT AND PENALTY

8. Any person operating an All-Terrain Vehicle, Multi-purpose Off-highway Utility Vehicle, or Recreational Off-highway Vehicle in contravention of provincial statute or this By-Law shall upon conviction be guilty of an offence and subject to the penalties under the authority of the Highway Traffic Act, as applicable.
9. The Ontario Provincial Police are responsible for enforcing all provincial legislation relating to All-Terrain Vehicle, Multi-purpose Off-highway Utility Vehicle, Recreational Off-highway Vehicle use on highways.

VALIDITY AND SEVERABILITY

10. Every provision of this By-Law is declared severable from the remainder and if any provision of this By-Law shall be declared invalid by a court of competent jurisdiction, such declaration shall not affect the validity of the remainder of this By-Law.

EXEMPTIONS

11. Exemptions under Part IV of O. Reg. 316/03 apply to this By-Law.

FORMER BY LAWS REPEALED

12. By-law 2016-32 is hereby repealed on the date that the new by-law comes into effect

FORCE AND EFFECT

13. THAT this By-law shall take effect on the date of passing.

SHORT TITLE

14. This By-Law shall be referred to as the "ATV, UTV, ORV By-Law".

Read a first, second and third time and finally passed this 11th day of May, 2022.

[REDACTED]

Mayor Phil Harding

[REDACTED]

Lauren Tarasuk, Clerk